

Client, and will not, to the extent permitted by law, have any liability whatsoever for any loss resulting directly or indirectly from these circumstances, including but not limited to any liability to pay any damages or otherwise compensate the Client or any other person.

17.6 Historical Transaction Data Costs. The Client understands and agrees that, to the extent possible, Convera will respond to any Client request for copies of historical transaction or other similar information; however, the costs associated with retrieving and providing such information will be billed to the Client.

17.7 Entire Agreement. This Agreement constitutes the entire agreement between the Parties concerning the subject matter hereof and supersedes all prior agreements between the Parties concerning the subject matter hereof. In the event of any conflict or ambiguity between the provisions of this Agreement and any other agreement (e.g., a previously executed confidentiality agreement), the provisions of this Agreement will prevail. It is expressly agreed by the Client that any indemnification obligation in effect and contemplated in any prior agreement will be extinguished as of the date the Trading Application is signed by the Client.

17.8 Termination and Survival. The Parties may terminate this Agreement, with or without cause, at any time upon providing written notice. The provisions in this Agreement relating to:

- a) indemnification in clause 4;
- b) Online Payment System security in clause 5;
- c) full Settlement in clause 8; and
- d) all of clauses 11, 12 and 17 will survive completion of the Services to the Client and termination of this Agreement.

For the avoidance of doubt, termination by either Party will not affect any rights that have accrued prior to termination (including with respect to any Foreign Exchange Contract existing at the date of termination).

17.9 Escheatment. If a cheque remains un-cashed for a period of six (6) months (as measured from the date on the cheque), Convera may escheat the funds in accordance with applicable abandoned property laws.

17.10 Independent Contractors. The Parties will each act at all times as independent contractors and nothing contained in this Agreement will be interpreted, construed or implied to create any agency, partnership or joint venture between the Parties. Nothing in this Agreement will be interpreted, construed or implied as creating or establishing the relationship of employer and employee between Convera and the Client. At no time will either Convera or the Client make commitments for or in the name of the other.

17.11 Publicity. Neither Party may use the other Party's name in news releases, articles, brochures, marketing materials, advertisements and other publicity or investor promotions without the written consent of the other Party.

17.12 Notices. Communications and notices required or permitted under this Agreement will be deemed delivered when hand-delivered to the receiving person, upon delivery via certified mail (return receipt requested), upon delivery via a national or international package delivery company (return receipt requested or delivery confirmation received), when such delivery is refused to the address first set forth in the Trading Application or when faxed to the facsimile number set forth in the Trading Application or electronically transmitted to the e-mail address set forth in the Trading Application, with hard copy mailed within three (3) days thereafter in the manner set forth above. Any Party may change its address for the purposes of this notice provision by giving notice in the manner prescribed above.

17.13 Third Party Rights. Save in respect of a Convera Group Company, a person who is not a party to this Agreement has no right under the Contracts (Rights of Third Parties) Act, Chapter 53B of Singapore to enforce any term of this Agreement.

17.14 Headings. The headings of several sections are inserted for convenience of reference only and are not intended to be a part of or to affect the meaning or interpretation of this Agreement.

17.15 Governing Law. This Agreement will be interpreted in accordance with the laws of Singapore and the Client submits to the jurisdiction of the courts of Singapore.